forty-five years, except such persons as now are or hereafter may be exempted by the laws of the United States or of this State, and shall be armed, equipped, and trained as the general assembly may provide by law.

Sec. 2. No person or persons conscientiously scrupulous of bearing arms shall be compelled to do militia duty in time of peace, provided such person or persons shall pay an equivalent for such exemption.

Sec. 3. Company, battalion, and regimental officers, staff-officers excepted, shall be elected by the persons composing their several companies, battalions, and regiments.

Sec. 4. Brigadier and major generals shall be elected by the officers of their brigades and divisions, respectively.

Sec. 5. All militia officers shall be commissioned by the governor, and may hold their commissions for such time as the legislature may provide.

Sec. 6. The militia shall in all cases, except treason, felony, or breach of the peace, be privileged from arrest during their attendance at musters and election of officers, and in going to and returning from the same.

Article IX

of the revenue

Section 1. The general assembly may, whenever they shall deem it necessary, cause to be collected from all able-bodied free white male inhabitants of this State, over the age of twenty-one years and under the age of sixty years, who are entitled to the right of suffrage, a capitation-tax of not less than fifty cents nor more than one dollar each.

Sec. 2. The general assembly shall provide for levying a tax by valuation, so that every person and corporation shall pay a tax in proportion to the value of his or her property; such value to be ascertained by some person or persons to be elected or appointed in such manner as the general assembly shall direct, and not otherwise; but the general assembly shall have power to tax pedlers, auctioneers, brokers, hawkers, merchants, commission-merchants, show-men, jugglers, innkeepers, grocery-keepers, toll bridges and ferries, and persons using and exercising franchises and privileges in such manner as they shall from time to time direct.

Sec. 3. The property of the State and counties, both real and personal, and such other property as the general assembly may deem necessary for school, religious, and charitable purposes, may be exempted from taxation.

Sec. 4. Hereafter no purchaser of any land or town-lot, at any sale of lands or town-lots, for taxes due either to this State, or any county, or incorporated town or city within the same; or at any sale for taxes or levies authorized by the laws of this State, shall be entitled to a deed for the lands or town-lots so purchased until he or she shall have complied with the following conditions, to wit: Such purchaser shall serve, or cause to be served, a written notice of such purchase on every person in possession of such land or town-lot, three months before the expiration of the time of redemption on such sale; in which notice he shall state when he purchased the land or town-lot, the description of the land or lot he has purchased, and

when the time of redemption will expire. In like manner he shall serve on the person or persons in whose name or names such land or lot is taxed a similar written notice, if such person or persons shall reside in the county where such land or lot shall be situated; and in the event that the person or persons in whose name or names the land or lot is taxed do not reside in the county, such purchaser shall publish such notice in some newspaper printed in such county; and if no newspaper is printed in the county, then in the nearest newspaper that is published in this State to the county in which such lot or land is situated; which notice shall be inserted three times, the last time not less than three months before the time of redemption shall expire. Every such purchaser, by himself or agent, shall, before he shall be entitled to a deed, make an affidavit of having complied with the conditions of this section, stating particularly the facts relied on as such compliance; which affidavit shall be delivered to the person authorized by law to execute such tax-deed, and which shall by him be filed with the officer having custody of the records of lands and lots sold for taxes, and entries of redemption in the county where such land or lot shall lie, to be by such officer entered on the records of his office and carefully preserved among the files of his office; and which record or affidavit shall be *prima-facie* evidence that such notice has been given. Any person swearing falsely in such affidavit shall be deemed guilty of perjury, and punished accordingly. In case any person shall be compelled under this section to publish a notice in a newspaper, then, before any person who may have a right to redeem such land or lot from tax-sale shall be permitted to redeem, he or she shall pay the officer or person who by law is authorized to receive such redemption-money, the printer's fee for publishing such notice, and the expenses of swearing or affirming to the affidavit, and filing the same.

Sec. 5. The corporate authorities of counties, townships, school districts, cities, towns, and villages may be vested with power to assess and collect taxes for corporate purposes; such taxes to be uniform in respect to persons and property within the jurisdiction of the body imposing the same. And the general assembly shall require that all the property within the limits of municipal corporations belonging to individuals shall be taxed for the payment of debts contracted under authority of law.

Sec. 6. The specifications of the objects and subjects of taxation shall not deprive the general assembly of the power to require other objects or subjects to be taxed in such manner as may be consistent with the principles of taxation fixed in this constitution.

Article X

corporations

Section 1. Corporations, not possessing banking powers or privileges, may be formed under general laws, but shall not be created by special acts, except for municipal purposes, and in cases where, in the judgment of the general assembly, the objects of the corporation cannot be attained under general laws.

Sec. 2. Dues from corporations, not possessing banking powers or privileges, shall be secured by such individual liabilities of the corporators, or other means, as may be prescribed by law.

Sec. 3. No State bank shall hereafter be created, nor shall the State own or be liable for any stock in any corporation or joint-stock association for banking purposes, to be hereafter created.

Sec. 4. The stockholders in every corporation, or joint-stock association for banking purposes, issuing bank-notes, or any kind of paper credits to circulate as money, shall be individually responsible, to the amount of their respective share or shares of stock in any such corporation or association, for all its debts and liabilities of every kind.

Sec. 5. No act of the general assembly, authorizing corporations or associations with banking powers, shall go into effect, or in any manner be in force, unless the same shall be submitted to the people at the general election next succeeding the passage of the same, and be approved by a majority of all the votes cast at such election for and against such law.

Sec. 6. The general assembly shall encourage internal improvements, by passing liberal laws of incorporation for that purpose.

Article XI

commons

All lands which have been granted, as a "common," to the inhabitants of any town, hamlet, village, or corporation, by any person, body politic or corporate, or by any government having power to make such grant, shall forever remain common to the inhabitants of such town, hamlet, village, or corporation; but the said commons, or any of them, or any part thereof, may be divided, leased, or granted, in such manner as may hereafter be provided by law, on petition of a majority of the qualified voters interested in such common, or any of them.

Article XII

amendments to the constitution

Section 1. Whenever two-thirds of all the members elected to each branch of the general assembly shall think it necessary to alter or amend this constitution, they shall recommend to the electors at the next election of members of the general assembly, to vote for or against a convention; and if it shall appear that a majority of all the electors of the State voting for representatives have voted for a convention, the general assembly shall, at their next session, call a convention to consist of as many members as the house of representatives at the time of making said call, to be chosen in the same manner, at the same place, and by the same electors, in the same districts that chose the members of the house of representatives; and which convention shall meet within three months after the said election, for the purpose of revising, altering, or amending this constitution.

Sec. 2. Any amendment or amendments to this constitution may be proposed in either branch of the general assembly; and if the same shall be agreed to by two-thirds of all the members-elect in each of the two houses, such proposed amendment or amendments shall be referred to the next regular session of the general assembly, and shall